

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 8/28/2026 10:00 AM

#	Case Name	Tentative
1	Nshanyan vs. Alvarado 30-2024-01420179-CU-CO-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Scott C. Lee of Mayr Lee APC, to be relieved as counsel of record for defendants Mareties Pontoy and Analie Francisco is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to clients, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.

2	Jefferson Capital Systems, LLC vs. Son 30-2025-01496753-CU-CL-CJC	Motion to Set Aside Dismissal The motion of plaintiff Jefferson Capital Systems, LLC to set aside dismissal is GRANTED. OSC re dismissal (default judgment) is scheduled for 9/24/2026 at 1:30 PM. Plaintiff is ORDERED to request entry of default and submit a default prove-up package to the court before the hearing. If plaintiff fails to do so, the court will again dismiss the action unless plaintiff appears and shows good cause otherwise. (See Cal. Rules of court, rule 3.110(b); Local Rule 381.) Plaintiff shall file and serve a status report no later than 5 court days before the hearing. <i>Failure to comply may subject the parties and/or counsel to sanctions pursuant to Code of Civil Procedure section 177.5.</i> Clerk to give notice.
3	Star vs. TopRank Motorworks Inc. 30-2024-01434530-CU-BC-CJC	Motion for Judgment on the Pleadings Off calendar – withdrawn at request of moving party.
4	DI Overnite Investments, LLC vs. Martin 30-2024-01410563-CU-BT-CJC	Motion for Terminating Sanctions and Monetary Sanctions for Failure to Obey Court Orders Defendants Michael Martin; Philip Nabal; and Express Overnite, LLC’s unopposed motion for terminating sanctions is GRANTED. Defendants’ request for additional monetary sanctions is DENIED. Defendants’ requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) Plaintiffs were ordered in May 2025 to provide further responses and verifications, and to produce responsive documents to Defendants’ requests for production. Additionally, the Court imposed monetary sanctions on Plaintiffs. Plaintiffs paid the monetary sanctions, however, never complied with the ordered discovery in over a

		year's time. After considering the totality of the circumstances, the Court finds Plaintiffs' conduct to be willful, preceded by a history of abuse, and it has caused Defendants prejudice. Less severe sanctions have not produced compliance. Additionally, Plaintiffs did not attempt to comply with their discovery obligations after the motion was filed. Nor did Plaintiffs bother to oppose the motion. "[S]anctions may not be imposed solely to punish the offending party." (<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 75.) Imposing additional monetary sanctions would solely punish Plaintiffs and would not be for the purpose of compelling compliance. The case is DISMISSED. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Clerk to give notice.
5	Malakoutian vs. Ruiz 30-2026- 01578846-CU- PT-CJC	Order to Show Cause re: Preliminary Injunction Plaintiffs' Teyebah Malakoutian, Demetric Willoughby, and Robin Jones motion for a preliminary injunction is CONTINUED to 10/2/2026. Plaintiffs submitted substantial additional evidence which includes 5 additional declarations and over 100 pages of exhibits in support of their Reply. "The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers." (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 (<i>Jay</i>).) "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (<i>American Drug Stores, Inc. v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453.) "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case. . . ' and if permitted, the other party should be given the opportunity to respond." (<i>Jay, supra</i>, 218 Cal.App.4th at p. 1538.) In lieu of disregarding the additional evidence submitted with the Reply, the Court will continue the hearing and allow Defendants to respond to the additional declarations filed with the Reply. Defendants may file a supplemental

		opposition no later than 9 court days prior to the continued hearing. No additional briefing will be considered. Temporary Restraining Order shall remain in effect until the next hearing. Clerk to give notice.
6	Truong vs. Nguyen 30-2025- 01537299-CU- RI-CJC	Demurrer to First Amended Complaint The demurrer to first amended complaint (FAC) of defendants Uy Nguyen, Teletron, Inc., Teletron Global, Inc., and Thanh Dang, is SUSTAINED with 10 days leave to amend. The entire FAC is uncertain. The court cannot discern which plaintiff is suing which defendant for which cause of action. The court cannot determine whether the alleged conduct falls within the purview of 47 U.S.C. section 230. The FAC does not include sufficient detail of dates of alleged conduct for purposes of testing whether plaintiffs have complied with the statutes of limitation. The court cannot determine what images were used, when, which statements were published, when, which defendant hired or supervised Tran or which plaintiff suffered injury, or what that injury is. The court cannot determine whether the information was streamed on the internet or broadcast on television or both. These are but a few of the uncertainties. The entire pleading will likely need to be re-drafted from the ground up to survive future attack. If plaintiffs choose to amend, plaintiffs are ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
7	Zheng vs. Zheng 30-2025- 01488963-CU- NP-CJC	The instant case is one for malicious prosecution, which alleges a previous case for malicious prosecution over a domestic violence restraining order (DVRO) was malicious. Plaintiffs Gene Zheng and May Zheng, and Defendant Jack Zhen Zheng, are siblings. Defendant Nigel Burns is an attorney whose firm represented Jack in the first malicious prosecution action. Defendant Nigel Burns's Demurrer to Complaint Defendants Nigel Burns and The Law Offices of Nigel Burns' Demurrer to Plaintiff's Complaint is OVERRULED.

	To prevail on a cause of action for malicious prosecution, "the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff." (<i>Detrick v. Shimada</i> (2026) 120 Cal.App.5th 170, 176 [citation omitted].) Defendants demur on the ground Plaintiffs fail to plead a favorable termination as the action was dismissed following Defendants' request for dismissal with prejudice. "A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury." (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) Plaintiffs have sufficiently alleged Defendants filed a voluntary dismissal with prejudice following Plaintiffs' filing of a motion for summary judgment (Compl. ¶ 17), which may be presumed to be a favorable termination on the merits. Whether Defendants are able to rebut this presumption is not an appropriate consideration at the demurrer stage. Defendants are ORDERED to file an answer within 5 days. Defendant Nigel Burns's Special Motion to Strike Complaint and Request Award of Attorney Fees and Costs Defendants Nigel Burns and The Law Offices of Nigel Burns' Special Motion to Strike the Complaint (Anti-SLAPP) is DENIED. <u>Plaintiffs' request for judicial notice</u> Plaintiffs' request for judicial notice is GRANTED. However, the Court is precluded from taking judicial notice of the truth of facts asserted in the documents other than orders, findings of fact and conclusions of law, and judgments. <u>Legal standard</u> "Litigation of an anti-SLAPP motion involves a two-step process. First, 'the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged.' Second, for each claim that does arise from protected activity, the plaintiff must show the claim has 'at least 'minimal merit.' If the plaintiff cannot make this showing, the court will strike the claim." (<i>Bonni v. St.</i>
--	---

Joseph Health System (2021) 11 Cal.5th 995, 1009 [cleaned up].)

Protected activity

As Plaintiffs concede a malicious prosecution claim arises from protected activity (Opp. at 4:3-4), the first prong is satisfied.

Probability of prevailing

To prevail on a cause of action for malicious prosecution, "the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff." (*Detrick v. Shimada* (2026) 120 Cal.App.5th 170, 176 [citation omitted].)

Probable cause

"The decision on the probable cause element is normally made by the court as a matter of law based on an objective assessment of the merits of the underlying action. [T]he probable cause element calls on the trial court to make an objective determination of the 'reasonableness' of the defendant's conduct, i.e., to determine whether, on the basis of the facts known to the defendant, the institution of the prior action was legally tenable. A claim is unsupported by probable cause if any reasonable attorney would agree that it is totally and completely without merit. The legal question of probable cause turns 'not [on] the defendant's subjective belief in the legal tenability of his claim, but rather the state of the defendant's knowledge of the facts on which his claim was based. (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 794 [cleaned up].

Defendants do not dispute they were aware Jack's claim was based on Gene and May's request for a DVRO. Defendants also do not dispute the authority provided by Plaintiffs, including *S.A. v. Maiden* (2014) 229 Cal.App.4th 27, addressed whether a malicious prosecution action could be predicated on a request for a DVRO or when presented with that authority and others, Defendants relied only a case decided over 25 years before *S.A. Maiden*. (Lee Decl., ¶¶ 9-12, Exs. G, H, J, K.) Defendants do not demonstrate any other facts known to Defendants that would render Jack's claim otherwise legally tenable.

		Moreover, as Jack brought a malicious prosecution action against Gene and May in the underlying action, he too was required to show Gene and May's DVRO was "initiated or maintained both without probable cause and with malice." (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176 [citation omitted].) Plaintiffs contend they provided Defendants with evidence supporting probable cause for Gene and May's request for a DVRO, including sworn deposition, declaration, and court testimony from a third-party who called 911 regarding the alleged underlying altercation and testimony from May and Jack. Defendants do not provide conflicting evidence or demonstrate whether any other facts known to Defendants cast doubt on Plaintiffs' showing of probable cause through these documents and testimony. The Court finds Jack's prior action i.e., his malicious prosecution action based on Gene and May's DVRO, was not based on probable cause based on an objective assessment in light of the relevant legal authority and Defendants' knowledge of the facts on which Jack's claim was based. <u>Malice</u> Malice "relates to the subjective intent or purpose with which the defendant acted in initiating the prior action," and requires "actual ill will or some improper ulterior motive," which "may range anywhere from open hostility to indifference." (<i>Downey Venture v. LMI Ins. Co.</i> (1998) 66 Cal.App.4th 478, 494.) "The absence of probable cause alone does not establish malice. However, '[m]alice may . . . be inferred from the facts establishing lack of probable cause.' The attorney's subjective belief in the tenability of the claim, or the lack of such belief—while irrelevant to probable cause—is 'clearly . . . relevant to the question of malice.'" (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 223 [cleaned up].) While evidence of an attorney's possible negligence in conducting factual research is not enough on its own to show malice, "malice can be inferred when a party <i>continues</i> to prosecute an action after becoming aware that the action lacks probable cause." (<i>Daniels, supra</i>, 182 Cal.App.4th at pp. 225-226 [citation omitted].) Plaintiffs contend they provided sworn deposition, declaration, and court testimony to Defendants
--	--	--

	demonstrating allegations of Jack’s malicious prosecution action were disproved (i.e., that the DVRO was brought with probable cause) and Defendants nevertheless continued with the litigation. Defendants do not provide any evidence to challenge the resulting inference, including, for example, findings from their own investigation and research that revealed facts controverting Plaintiffs’ evidence or called into question the credibility of Plaintiffs’ evidence. The Court finds Plaintiffs have established malice. <u>Favorable termination</u> “A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury. This is because ‘[a] dismissal for failure to prosecute . . . does reflect on the merits of the action [and in favor of the defendant] The reflection arises from the natural assumption that one does not simply abandon a meritorious action once instituted.’” (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) On 12/24/2020, Plaintiffs filed a motion for summary judgment (MSJ) in the underlying action on the single ground the action was legally barred. (Lee Decl., ¶ 14, RJN Ex. 4.) On 2/17/2021, before that motion was heard and before any opposition to it was filed Plaintiffs filed a Request for Dismissal, which was entered the same day. (Lee Decl., ¶ 14, RJN Ex. 5.) Defendants offer no evidence to rebut the presumption the voluntary dismissal was a favorable termination on the merits such as evidence demonstrating the dismissal was based on a technical or procedural ground or was otherwise unrelated to the merits of the case. That Plaintiffs rely on the 6/12/2023 dismissal of the remaining cross-complaint to establish accrual of their cause of action, while relying on the 2/17/2021 dismissal of the complaint as proof of a merits-based termination is not inconsistent. The dismissal was a favorable termination for purposes of establishing the merits of their malicious prosecution cause of action. Relying on the subsequent dismissal of the cross-complaint for procedural purposes does not negate or otherwise impact that showing.
--	---

	Plaintiffs have demonstrated their malicious prosecution cause of action has at least “minimal merit.” Defendants are ORDERED to file an answer within 5 days. Defendant Jack Zhen Zheng’s Special Motion to Strike Defendant Jack Zhen Zheng’s Special Motion to Strike the Complaint (Anti-SLAPP) is DENIED. <u>Plaintiffs’ request for judicial notice</u> Plaintiffs’ request for judicial notice is GRANTED. <u>Legal standard</u> “Litigation of an anti-SLAPP motion involves a two-step process. First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has ‘at least ‘minimal merit.’ If the plaintiff cannot make this showing, the court will strike the claim.” (<i>Bonni v. St. Joseph Health System</i> (2021) 11 Cal.5th 995, 1009 [cleaned up].) <u>Protected activity</u> As Plaintiffs concede a malicious prosecution claim arises from protected activity (Opp. at 4:3-4), the first prong is satisfied. <u>Probability of prevailing</u> To prevail on a cause of action for malicious prosecution, “the plaintiff must show that a prior action was: commenced by or at the direction of the defendant; initiated or maintained both without probable cause and with malice; and pursued to a legal termination favorable to the plaintiff.” (<i>Detrick v. Shimada</i> (2026) 120 Cal.App.5th 170, 176 [citation omitted].) <u>Probable cause</u> “Probable cause may be established by the defendants in a malicious institution proceeding when they prove that they have in good faith consulted a lawyer, have stated all the facts to him, have been advised by the lawyer that they have a good cause of action and have honestly acted upon the advice of the lawyer.” (<i>Palmer v. Zaklama</i> (2003) 109 Cal.App.4th 1367, 1383 [citation omitted].) “Conversely, if the defendant acted in bad faith or
--	---

		withheld facts from counsel he or she knew or should have known would have defeated the cause of action, probable cause is not established.” [C]ounsel’s advice must be sought in good faith [citation] and “. . . not as a mere cloak to protect one against a suit for malicious prosecution. The burden of proving good faith reliance on the advice of counsel falls on the party asserting the defense. (<i>Id.</i> at pp. 1383-1384 [cleaned up].) In his declaration, Jack states only, “On September 29, 2017, after I had defeated the DVRO’s sought by my siblings May and Gene, my then-attorney Nigel Burns, filed a lawsuit for me for Wrongful Use of Civil Proceedings. I trusted that Mr. Burns knew the law. Had he told me that the lawsuit was not allowed, I would not have filed it.” (Zheng Decl., ¶ 3.) With respect to the legal authority regarding the viability of Jack’s malicious prosecution cause of action, Jack contends, “it was Mr. Burns’ responsibility to advise Jack as to how to proceed forward, including if filing a dismissal was necessary, and when to file.” (Reply at 9:10-11.) Jack further contends as “Plaintiffs’ Complaint is solely premised on the alleged prosecution of a suit that was legally barred because of the nature of proceedings forming the basis of the 169 Action; the precise ‘who, what, when, where, why’ of the events of April 12, 2017, are immaterial here. The only material fact is that the 169 Action was based upon Plaintiffs’ failed restraining orders. This is a fact that Jack’s attorney, Nigel Burns, clearly possessed when he authored and filed the complaint for the 169 Action.” (Reply at 7:15-20.) In the context of this anti-SLAPP motion, however, the Court is to analyze whether Plaintiffs’ cause of action for malicious prosecution has minimal merit. Part of that analysis is determining whether a prior action was “initiated or maintained both without probable cause” (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176.) Accordingly, the Court must look at whether Jack’s prior action for malicious prosecution was initiated or maintained without probable cause. In bringing a malicious prosecution action against Gene and May, Jack too was therefore required to show Gene and May’s DVRO was “initiated or maintained both without probable cause and with malice.” (<i>Detrick, supra</i>, 120 Cal.App.5th at p. 176 [citation omitted].) Accordingly, contrary to Jack’s contentions, details
--	--	---

		regarding that underlying action are relevant to the analysis. "The burden of proving good faith reliance on the advice of counsel falls on the party asserting the defense." (<i>Palmer, supra</i>, at pp. 1383-1384 [cleaned up].) While on reply Jack contends his counsel "had all of the relevant information," (Reply at 10:5), Jack provides no evidence, including in his declaration, to demonstrate he stated all the facts to his counsel at the time and was thereafter advised he had a good cause of action. As Jack has not met his burden of proving good faith reliance on counsel, the Court finds he has not established probable cause. <u>Malice</u> Malice "relates to the subjective intent or purpose with which the defendant acted in initiating the prior action," and requires "actual ill will or some improper ulterior motive," which "may range anywhere from open hostility to indifference." (<i>Downey Venture v. LMI Ins. Co.</i> (1998) 66 Cal.App.4th 478, 494.) "The absence of probable cause alone does not establish malice." (<i>Maletti v. Wickers</i> (2022) 82 Cal.App.5th 181, 223 [citation omitted].) "Since parties rarely admit an improper motive, malice is usually proven by circumstantial evidence and inferences drawn from the evidence." (<i>Daniels v. Robbins</i> (2010) 182 Cal.App.4th 204, 225 [citation omitted].) "Additional proof of malice can consist of evidence a party <i>knowingly</i> brings an action without probable cause." (<i>Id.</i> at p. 226 [citation omitted; emphasis in original].) Plaintiffs rely on various evidence they contend demonstrate Gene and May had probable cause for their DVRO, including sworn deposition, declaration, and court testimony from a third-party who called 911 regarding the alleged underlying altercation and testimony from May and Jack. While Plaintiffs have presented evidence sufficient to infer Jack knowingly brought this action without probable cause, Jack does not present any conflicting evidence or any other facts casting doubt on the inference drawn from Plaintiffs' evidence. The Court finds Plaintiffs have established malice. <u>Favorable termination</u>
--	--	---

		"A voluntary dismissal is presumed to be a favorable termination on the merits, unless otherwise proved to a jury. This is because '[a] dismissal for failure to prosecute . . . does reflect on the merits of the action [and in favor of the defendant] The reflection arises from the natural assumption that one does not simply abandon a meritorious action once instituted.'" (<i>Citizens of Humanity, LLC v. Ramirez</i> (2021) 63 Cal.App.5th 117, 129 [cleaned up].) On 12/24/2020, Plaintiffs filed a motion for summary judgment (MSJ) in the underlying action on the single ground the action was legally barred. (Lee Decl., ¶ 14, RJN Ex. 4.) On 2/17/2021, before that motion was heard and before any opposition to it was filed Plaintiffs filed a Request for Dismissal, which was entered the same day. (Lee Decl., ¶ 14, RJN Ex. 5.) Jack's declaration contains no discussion of the dismissal including any indication as to why he voluntarily dismissed the action, while the declaration of Jack's counsel states only, "On February 17, 2021, prior to his deadline to oppose the MSJ, and before the Court issued any ruling on the merits of the 169 case, Jack voluntarily dismissed his operative Malicious Prosecution complaint with prejudice." (Smith Decl., ¶ 4.) As such, Jack offers no evidence to rebut the presumption the voluntary dismissal was a favorable termination on the merits such as evidence demonstrating the dismissal was based on a technical or procedural ground or was otherwise unrelated to the merits of the case. Plaintiffs have demonstrated their malicious prosecution cause of action has at least "minimal merit." Jack is ORDERED to file an answer within 5 days. Clerk to give notice.
8	V. Lynn Hodge, as Trustee of the Plaza del Sol Real Estate Trust Under Declaration of Trust Dated February 9, 1996, as Amended, A California Revocable Trust	Motion for Summary Judgment and/or Adjudication Off calendar – case settled.

	vs. OC Media Tower, L.P. 30-2021-01227550-CU-FR-CJC	
9	Mattatall vs. Brett Dinovi & Associates California, LLC 30-2025-01527131-CU-WE-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Brett Dinovi & Associates California, LLC's Motion to Compel Arbitration is GRANTED. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objections are OVERRULED. Plaintiff's request for judicial notice is GRANTED. Defendant seeks to compel arbitration pursuant to Section 17 of an offer letter for the position of Associate Vice President of School Services (Agreement). (Bermudez Decl., ¶ 9, Ex. A.) The parties do not dispute Plaintiff signed the Agreement. Rather, Plaintiff contends the Agreement is both procedurally and substantively unconscionable. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 246-247 [citations omitted].) <u>Procedural unconscionability</u> While adhesive contracts offered on a "take-it-or-leave-it" basis typically contain some aspect of procedural unconscionability, the degree of procedural unconscionability of an adhesion agreement will be low absent evidence of any other indication of oppression or surprise. (<i>Serpa v. California Surety Investigations, Inc.</i> (2013) 215 Cal.App.4th 695, 704 [citations omitted].) Plaintiff's declaration testimony states she was not informed the Agreement contained an arbitration clause and no one explained to her there were additional terms in the offer or what arbitration meant when she was presented with the offer. (Mattatall Decl., ¶ 4.) Plaintiff does not state she was given insufficient time to read the Agreement or precluded from consulting with counsel or asking questions regarding the Agreement. Nor does Plaintiff contend the Agreement was particularly

	verbose, illegible, or complex. "Reasonable diligence requires the reading of a contract before signing it. A party cannot use [her] own lack of diligence to avoid an arbitration agreement." (<i>Brookwood v. Bank of America</i> (1996) 45 Cal.App.4th 1667, 1674 [citation omitted].) Additionally, though the JAMS rules are not attached to the Agreement, the Agreement provides the specific website from which they may be obtained. (See <i>Lane v. Francis Capital Management, LLC</i> (2014) 224 Cal.App.4th 676, 690-691.) Accordingly, Court finds a low degree of procedural unconscionability. <u>Substantive unconscionability</u> The non-compete provision in Section 2 of the Agreement is not void as a matter of law as it purports to apply "[w]hile [Plaintiff is] employed by the Company." (See <i>Techno Lite, Inc. v. Emcod, LLC</i> (2020) 44 Cal.App.5th 462, 471 [cleaned up].) Plaintiff does not provide any authority Labor Code section 96, subdivision (k) permits business activities that would interfere with Plaintiff's performance of her duties or compete with Defendant's business while employed by Defendant. The mileage rate set forth in the Agreement is not so harsh and one-sided as to "shock the conscience." (See <i>Pinnacle, supra</i>, 55 Cal.4th at p. 246 [citations omitted].) The Agreement does not lack mutuality as it applies to any disputes relating to Plaintiff's employment with Defendant, which would necessarily include any claims Defendant may have against Plaintiff relating to her employment, not just those that Plaintiff brings against Defendants. The fact that the Agreement's delegation clause was presented as part of an adhesion contract demonstrates only a low degree of procedural unconscionability, as discussed above. Finally, while categorical PAGA waivers are unenforceable (<i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal.5th 1104, 1117 [citation omitted]), the Agreement provides the paragraph regarding waiver of representative actions "shall not apply . . . to any action or claim that cannot be subjected, compelled, or submitted to, mandatory arbitration as a matter of applicable law." Thus, by the Agreement's terms it would not apply to a waiver of a non-individual PAGA claim, which cannot be subject to
--	--

		mandatory waiver, while permitting Defendant to enforce the agreement insofar as it mandated arbitration of Plaintiff's individual PAGA claim. (See <i>Viking River Cruises, Inc. v. Moriana</i> (2022) 596 U.S. 639, 662.) The Agreement is not substantively unconscionable. The matter is STAYED pending arbitration. Arbitration Status Review set for 8/25/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
10	Morris vs. Newman 30-2025- 01508723-CU- OR-CJC	Motion for Appointment of Receiver and Issuance of Preliminary Injunction Plaintiff Paula Sue Morris's Motion to Appoint Receiver and Issuance of Preliminary Injunction is GRANTED . Plaintiff's request for judicial notice of (ROA 42) of Wyoming court filings is GRANTED. Defendant's evidentiary objections to the Declarations of Stephen J. Thomas and Erik Perkowski are OVERRULED. In the complaint, Plaintiff alleges a scheme by Defendants to fraudulently take her equity and control of a condominium in Laguna Beach. Plaintiff claims Defendants encumbered the property with over \$2 million in secured debt while failing to make payments for 16 months, resulting in a notice of default and delinquent property taxes and HOA dues. A foreclosure sale of the property is scheduled for 9/2/2026. (Thomas Reply Decl., ¶ 4.) Plaintiff seeks appointment of a receiver to preserve and sell the property to avoid a below-market foreclosure sale. The secured lender which has initiated foreclosure proceedings, Core Lending, supports the appointment of a receiver to conduct a market sale. Plaintiff requests appointment of Richardson C. Griswold, an experienced court-appointed receiver and real estate broker. Plaintiff also seeks a preliminary injunction preventing Defendants from transferring or further encumbering the property or allowing the foreclosure sale to proceed. Defendants oppose the motion on the grounds, (1) the lender is the driving force behind appointment of the receiver, (2) Plaintiff was largely responsible for or knowingly consented to the alleged encumbrances and/or waste of the property, (3) Plaintiff relies on

	false/nonexistent legal authorities generated by AI, and (4) the preliminary injunction is unsupported by legal authority or a showing of likelihood of success on the merits. The court disregards Plaintiff’s legal authorities, finding the declaration of Stephen J. Thomas (ROA 102) admits the attributions are not fully supported by the cases cited. <u>Appointment of Receiver</u> Code of Civil Procedure section 564(b) states in part, “(b) A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: [¶¶] (1) In an action by a vendor to vacate a fraudulent purchase of property, or by a creditor to subject any property or fund to the creditor's claim, or between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, or of any party whose right to or interest in the property or fund, or the proceeds of the property or fund, is probable, and where it is shown that the property or fund is in danger of being lost, removed, or materially injured. [¶] (9) In all other cases where necessary to preserve the property or rights of any party.” Defendants argue receivership is a drastic and expensive remedy which is unnecessary because Defendant Newman has engaged in good faith efforts to sell the property, which have been harmed by Plaintiff’s recording of a lis pendens, and because Plaintiff has not exhausted other remedies such as mediation/arbitration, marketing and status reporting, and/or an undertaking. (Amended Opp., pp. 5-10.) Defendants contend, “Granting the Motion strips the majority holders of a residence and an actively marketed asset, thirteen months before trial, to the benefit of a non-party lender that already has a complete statutory remedy. Denying it costs Plaintiff nothing: her claims proceed to trial intact, the foreclosure statutes protect any surplus, and her contractual payout date remains February 1, 2029.” (<i>Id.</i> at p. 15.) However, Defendants do not deny the property must be sold.
--	--

	Plaintiff maintains although Newman may be able to find a buyer, he lacks authority to bind the entity that owns the property, Newmor LLC, a Wyoming corporation which holds title to the subject property. The LLC is the subject of a default judgment of the Wyoming Chancery Court holding the LLC did not have a validly appointed manager and Newman lacks authority/capacity under Wyoming law to exercise rights or assert control over real property. (Thomas Decl., Ex. B.) However, Defendants contend Newman was not properly served with the Wyoming lawsuit and while the default judgment voids a specified "Written Consent," it does not void Exhibit B to the Operating Agreement, which independently designates Newman as manager. (Thomas Decl., Ex. C.) Plaintiff has shown that appointment of a receiver is necessary under Code of Civil Procedure sections 564, subdivisions (b)(1) and/or (9). The foreclosure sale is set to occur on 9/2/2026 and the Wyoming proceedings, at minimum, raise a substantial question regarding Newman's authority to conduct a sale of the property. Resolving such questions may require further litigation in Wyoming or California, which will not likely be resolved before the foreclosure sale occurs. Moreover, Plaintiff has presented evidence Defendants have not taken reasonable steps to avoid default, comply with property tax, insurance, and HOA obligations which failures provide independent grounds to appoint a receiver to facilitate orderly marketing and sale of the property. Defendants contend the proposed order is defective because it authorizes sale of the property without prior court order, contrary to Code of Civil Procedure section 568.5 which states, "A receiver may, pursuant to an order of the court, sell real or personal property in the receiver's possession upon the notice and in the manner prescribed by Article 6 (commencing with Section 701.510) of Chapter 3 of Division 2 of Title 9. The sale is not final until confirmed by the court." Plaintiff shall submit an amended proposed order that complies with Code of Civil Procedure section 568.5 by requiring Court confirmation before finalizing the sale, and amends paragraph 6(a) to specify the receiver's control of bank accounts only with regard to bank accounts directly related to and necessary to conduct the receiver's management and sale of the property. <u>Preliminary Injunction</u>
--	--

		Code of Civil Procedure section 526(a) provides in part, "(a) An injunction may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief." In deciding whether to issue a preliminary injunction, the court must consider two interrelated factors: (1) the likelihood that the moving party will prevail on the merits, and (2) whether the harm the moving party will likely suffer if the motion is denied outweighs the harm the opposing party is likely to suffer if the motion is granted. (<i>Ketchens v. Reiner</i> (1987) 194 Cal.App.3d 470, 474.) "These two showings operate on a sliding scale: '[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.' [Citation.]" (<i>Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.</i> (2016) 6 Cal.App.5th 1178, 1183. Plaintiff seeks an order "enjoining and restraining Defendant(s), and all persons acting in concert with them, from transferring, encumbering, concealing, dissipating, wasting, or otherwise disposing of the property and/or assets at issue, and from interfering with the receiver's performance of duties." Plaintiff has presented evidence showing Defendants have not taken reasonable steps to avoid default and comply
--	--	--

		with property tax, insurance, and HOA obligations. Plaintiff will likely suffer harm if a below-market foreclosure sale occurs, damaging her equity interest. On the other hand, Defendants have not presented evidence they will suffer substantial harm if the proposed injunction is granted because they do not oppose in principle the sale of the property and have not shown the injunction will preclude any specific acts which are necessary to avoid alleged harm. Plaintiff to submit proposed order. Clerk to give notice.
--	--	--